

25TRCV01361 25TRCV01361

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CB%2C09%2F01%2F2026

Source SHA-256: 7cfe1bb901c004f84bd507976f785cb6d68c3d0b6f61e767dd7250327d71fa64

Case Number: 25TRCV01361 Hearing Date: September 1, 2026 Dept: B

Moving

Parties: Plaintiff Briana Duran

Responding

Party: None

Motion

for Leave to File Second Amended Complaint

The Court considered the moving papers. No opposition was filed.

RULING

The motion is GRANTED.

BACKGROUND

On April 30, 2025, plaintiff Briana Duran filed a complaint against Simon Property Group, Inc. for (1) negligence and (2) premises liability.

On

June 13, 2025, plaintiff filed a FAC, adding Del Amo Fashion Center Operating Company, L.L.C. as a defendant. The FAC alleges that on December 3, 2024, at approximately 7:40 p.m., plaintiff was a customer at Del Amo Fashion Center. FAC, 6. Plaintiff entered Coffee Bean. Upon exiting, plaintiff traversed an area between Coffee Bean and Barnes & Noble, a commonly used route, intending to enter Barnes & Noble. Id., 7. While walking, plaintiff encountered a curb

adjacent to a vehicle used it as a convenient pathway. As plaintiff stepped off the curb, she unknowingly stepped into a pothole located within the parking lot. Id., 8.

The pothole, which appeared 3" to 4" deep, constituted a hidden and dangerous defect in the blacktop, resembling a crater or sinkhole. The area appeared recently tarred, oiled, and striped with white boundary lines, masking the dangerous condition. Id., 9. As a direct result, plaintiff fell forward, causing her to suffer severe injuries, including a complete fracture of her right ankle and additional injuries to her left ankle and other parts of her body. Id., 10.

On

July 7, 2025, plaintiff filed a request for dismissal as to Simon Property Group.

LEGAL

AUTHORITY

CCP §

473(a)(1) provides, in relevant part:

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

"This discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit." *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1047.

Under

CRC Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located;

and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

Under

CRC Rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

Even

if a good amendment is proposed in proper form, a long, unwarranted and unexcused delay in presenting it may be a good reason for denial. In most cases, the factors for timeliness are: (1) lack of diligence in discovering the facts or in offering the amendment after knowledge of them; and (2) the effect of the delay on the adverse party. If the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. *Hirsa v. Superior Court* (1981) 118 Cal. App. 3d 486, 490. Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or added costs of preparation such as an increased burden of discovery. *Magpali v. Farmers Group, Inc.* (1996) 48 Cal. App. 4th 471, 486-488.

"[L]eave

to amend should not be granted where, in all probability, amendment would be futile." *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal. App. 4th 680, 685 (citation omitted).

DISCUSSION

Plaintiff Briana Duran requests

leave to file a second amended complaint to add AMS Paving and Kimley Horn as defendants and a cause of action for negligent construction and design.

Plaintiff's counsel

states that he took the deposition of Nina Kiefer, the PMK designated by defendant Del Amo Fashion Center Operating Co., and that she testified that defendant retained Kimley Horn to survey the entire property, identify the paving needs by zone, and develop a five-year paving plan, resulting in a

schematic dated April 4, 2023. The witness testified that the paving and resurfacing work reflected in that plan, including work performed in the area of the incident, was carried out by AMS Paving. Counsel states that before the deposition, he was not aware of the identities of Horn or AMS Paving. See J. Owen Murrin decl.

The Court finds that

plaintiffs' counsel's declaration substantially complies with CRC Rule 3.1324. Further, "[l]eave to amend is in general required to be liberally

granted." Kolani v. Gluska (1998)

64 Cal. App. 4th 402, 412 (citation omitted).

The

motion is GRANTED.

ORDER

The motion is GRANTED.

Plaintiff is ordered to give notice of the ruling.